

TENTATIVE RULING

Case: **Garcia v. Penske Truck Leasing Co., L.P.**
 Case No. CV2024-1831

Hearing Date: **February 17, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Jaime Garcia's motion for final approval is **DROPPED FROM CALENDAR**.

Plaintiff did not file a motion for approval of PAGA settlement. (See Code Civ. Proc., § 1005, subd. (b); see also *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802.) Further, based on the Court's file, there is no indication that the stay issued on November 7, 2024, has been lifted.

TENTATIVE RULING

Case: **Independence Capital Recovery LLC (ICR) v. Roman**
Case No. CV-2025-3614

Hearing Date: **February 17, 2026** **Department Fourteen** **9:00 a.m.**

Motion to compel arbitration:

Defendant Kelly Gum Roman’s unopposed motion to compel arbitration and stay proceedings is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc, § 1281.2.) Defendant has not shown that an agreement to arbitrate exists between the parties. (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 [“The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement.”].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to quash:

Defendant Kelly Gum Roman’s unopposed motion to quash service is **DENIED**. Defendant fails to provide any legal authority in support of this motion. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

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